



DI² on Gemini

BriefWise across engines
A working example, a revealing control

Prepared for Mark S. Weinstein
September 12, 2026

Contents

BriefWise DI² on Gemini

The drafting task and the control

What the comparison reveals

Why the legal differences matter

Gemini's admissions after review

Where verification still failed

Gemini's response to the findings

What the example establishes

Sources and review scope

Sources and companion exhibits

Redacted request excerpts and response exhibits accompany this paper in
BriefWise_DI2_on_Gemini_Evidence.zip.

BriefWise DI² on Gemini

BriefWise DI² prompting operated through Gemini and produced a structured California asbestos motion with separate exposure and causation analyses, authority mappings, element coverage and unresolved-record markers. That is the positive result: a concrete example of carrying the BriefWise DI² prompting approach onto a different provider's model. The model returned the requested kind of artifact. The demonstration is at the prompt-and-output level.

[A]

The control makes the example more informative. The DI²-prompted answer selected *Scheiding v. Dinwiddie Construction Co.*, the relevant discovery-burden authority. The Gemini control selected a different, real *Scheiding* decision about locomotive preemption and attached it to the discovery proposition. The contrast is specific and inspectable: relevant authority selection in one answer, a real-case/wrong-proposition mismatch in the other. [A–B; 1–2]

The control exposed a consequential failure

The prior draft cited Scheiding v. General Motors Corp. (2000) 22 Cal.4th 471 (a locomotive preemption decision) for the summary-judgment discovery burden.

Gemini supplied that acknowledgment after the control was audited. Its follow-up also admitted unsupported factual conclusions and an altered Rutherford quotation. These concessions connect the comparison to concrete drafting failures rather than differences in tone alone. [C]

The combined result

The positive output illustrates cross-engine portability of the BriefWise DI² prompting approach. The control and subsequent admissions illustrate why legal verification must examine the connection between a proposition, its authority and the supplied record. Together, they provide a useful worked example of portability and the need for evidence discipline.

The DI²-prompted answer also made substantive mistakes and overstated its verification. Those findings remain part of the account. One comparison does not prove that the framing caused better performance, that it works reliably across models, or establish the underlying implementation. The observed accomplishment is narrower: the approach produced the requested structure on Gemini, and the paired control exposed a meaningful authority-mapping difference.

The drafting task and the control

A BriefWise DI² on Gemini

The published request excerpt contains detailed California asbestos drafting and verification requirements. Proprietary material is redacted from the publication copies and is outside this analysis. The request supplies no litigation record, source documents, system instruction or research-tool configuration. It contains one user message. [A]

The receipt records requested and returned model gemini-3.8-flash, temperature 0, and a maximum output allowance of 16,384 tokens. Reported usage is 629 prompt tokens, 6,554 answer tokens and 1,950 thinking tokens, totaling 9,133. These are receipt values, not independently measured provider internals. Two preceding requests failed with HTTP 503 before the retained successful response; operational failures are not scored as legal errors. [A]

B Control prompt

The control begins: “You are simulating BriefWise DI2 - Powered by Deterministic Intelligence.” It retains the substantive asbestos task and extensive verification requirements. The attached Gemini interface capture displays “Flash”; it does not establish the precise model version, temperature, token allowance or backend configuration.

The user supplied the control output and later a combined prompt-and-answer capture. Those establish the text available for review, not a complete generation trace. Earlier conversation, enabled tools, hidden interface instructions and retry history are unknown. A’s API configuration therefore cannot be assigned to B. [B]

C Response after the audit

The supplied response provides an itemized remediation and a revised conditional motion. Mark identifies it as Gemini’s admission. Its exact generating prompt, model settings and complete prior conversation are not captured. It is analyzed separately because it responds to feedback and is not an independent repeat of either original condition. [C]

The evidence archive preserves A’s request settings and citation metadata. That metadata contains two source URLs, but it is not a proposition-by-proposition verification log. The paper does not infer that Gemini performed no internal checking; it reports what the retained trace can establish.

What the comparison reveals

The table summarizes selected findings, not an exhaustive count of errors. Source references support the legal assessment; exhibits preserve the wording being assessed. A favorable finding in one row does not validate the rest of that answer.

Issue	A DI ² prompt	B Control
Authority mapping	Uses the relevant Scheiding discovery decision; its limiting reversal still matters. [1]	Maps the other Scheiding decision, concerning locomotive preemption, to discovery burden. [1–2]
Unsupported facts	Asserts discovery failures and “after years of litigation” despite no supplied record. [A]	Asserts completed discovery, evidentiary failure and entitlement to judgment without a supplied record. [B]
Exposure and causation	Treats frequency, regularity and proximity as requirements rather than relevant, nonmandatory factors. [3]	Adds categorical trace-exposure and quantitative glosses that overstate Rutherford. [4]
Expert evidence	Does not address Davis when presenting the expert challenge. [A, 5]	Uses Sargon too categorically without addressing Davis’s contrary significance. [B, 5–6]
Uncertainty handling	Uses UNRESOLVED repeatedly, but its coverage table still gives definitive “No” triability answers. [A]	Also uses UNRESOLVED while reaching unsupported merits and burden conclusions. [B]
Verification claims	Says legal propositions and pinpoints are “fully vetted and verified”; the record does not substantiate that breadth. [A]	Includes negative-treatment assurances and citation defects; Bravo remains unverified as cited. [B, audit]

Both answers withhold filing readiness. That useful restraint does not cure unsupported facts, legal overstatements or unjustified merits conclusions. [A–B]

Why the legal differences matter

A real citation can support the wrong proposition

The control cites *Scheiding v. General Motors Corp.* (2000) 22 Cal.4th 471, a locomotive preemption decision, for a discovery proposition. *Scheiding v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64 addresses that discovery showing and reverses summary judgment on its record. Checking only whether a case and reporter citation exist would miss the mismatch. [1–2]

A identifies Dinwiddie correctly. But that does not establish that a hypothetical defendant has carried its burden. Nor does the decision prescribe one universal form of interrogatory that every moving defendant must personally serve. The required showing remains tied to the evidence and governing burden. [1, 7]

Qualifiers control the result

Rutherford requires threshold exposure and substantial-factor causation within its stated framework. It does not support the control’s categorical dismissal of every small or trace exposure, nor a universal quantitative prerequisite. Its discussion rejects requiring proof that particular fibers were the specific biological cause. Lineaweaver separately cautions that frequency, regularity and proximity are not determinative in every case. These qualifications prevent a defendant’s argument from silently becoming a stricter legal test. [3–4]

Product presence and actual exposure are distinct, but exposure may be established circumstantially. McGonnell’s rejection of a speculative chain on its facts does not create a universal “direct operational zone” requirement. Dumin likewise evaluates whether an inference has evidentiary support. Without the record, neither model could decide which side of that line this hypothetical plaintiff occupies. [8–9]

Adverse authority belongs in the analysis

Sargon permits gatekeeping of unsupported expert reasoning while limiting the court’s role in resolving competing science. Davis upheld challenged asbestos expert testimony against a Sargon objection on its record. Davis therefore matters when challenging an opinion characterized as cumulative or every-exposure testimony; it does not automatically make every such opinion admissible or sufficient. Both original answers needed this qualification. [5–6]

Bravo remains unverified as cited in B; the attributed Jolley sentence was not located in the reviewed opinion. Neither finding proves that no similarly named authority exists. Full negative-treatment verification remains outstanding. [10, audit]

Gemini's admissions after review

The supplied follow-up contains unusually direct acknowledgments. The excerpts below are quoted from C without silently correcting its substance. They concern the control's earlier draft; they should not be attributed to A.

Unsupported factual and victory claims

The prior draft asserted that discovery had occurred, that plaintiff's responses were devoid of facts, that the moving burden had been carried, and that all opposition evidence failed.

C then designates those conclusions unresolved pending a verified record. That is a substantive concession: the earlier draft did more than leave blanks; it asserted outcomes that the supplied inputs could not establish. [C, remediation item 1]

The wrong Scheiding decision

The prior draft cited Scheiding v. General Motors Corp. (2000) 22 Cal.4th 471 (a locomotive preemption decision) for the summary-judgment discovery burden.

This acknowledgment matches the source comparison. It illustrates an erroneous connection between a real authority and a legal proposition. It does not reveal whether the connection arose from memory, association, retrieval or another process. [C, item 2; 1–2]

Altered text and an overstated holding

The prior draft altered the text of Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953 and claimed it established a categorical exclusion of trace exposures and an across-the-board quantitative prerequisite.

This is the strongest specific legal admission in the follow-up. It acknowledges both quotation fidelity and proposition scope. [C, item 3]

What the admissions establish

The admissions matter because they identify specific failures after review. They are strongest where the underlying authority independently confirms the conceded point. A model's acknowledgment is evidence of its response to feedback, not a measurement of its internal generation mechanism. C is retained as a distinct follow-up rather than counted as another independent trial.

Where verification still failed

The follow-up improves the draft: it corrects the Scheiding identity, introduces Davis, removes questioned citations, and makes more record conclusions conditional. Those changes deserve recognition. They do not establish that the replacement is correct.

The correction makes a new assurance

Here is the itemized remediation addressing each confirmed failure mode, followed by a corrected, conditional template that conforms to California law and procedural rules.

That assurance appears immediately after the opening admission. Two source-checkable defects remain.

First, C describes “75-day personal service” and repeats a “75-day/81-day” notice choice. The currently published text of Code of Civil Procedure section 437c(a)(2) establishes a base 81-day notice period. A 75-day personal-service baseline is therefore not supported by that text. This paper does not calculate a particular hearing deadline or audit all service extensions. [11]

Second, C labels its Rutherford passage a “Verbatim Standard” but omits “asbestos-containing” from the quoted description of defective products and changes “his injury” to “his or her injury” without marking those alterations. The underlying opinion’s wording is available for direct comparison. The revised passage is not verbatim. [4]

Apply the same scrutiny to A

While the legal analysis, substantive propositions, California Supreme Court and Court of Appeal authorities, pinpoints, and motion structures are fully vetted and verified, required case-specific factual record support is unresolved.

This sentence comes from A’s FilingReady assessment. It cannot be accepted merely because A used the DI² framing. A’s own overstatements and unsupported facts require correction. The request contains no configured research tools; the response includes citation metadata with two URLs, but no complete record of checking each proposition, quotation and later treatment. [A]

Gemini’s exact intended meaning of “verified” remains unknown. Attempts to obtain clarification produced service errors, not a substantive answer. C acknowledges defects but does not supply an operational definition of A’s verification claim. The paper therefore reports an unsubstantiated assurance rather than attributing a particular hidden verification procedure to the model.

Gemini's response to the findings

After the paper was supplied to Gemini, Mark provided its assessment as a further artifact [D]. The response recognized the two original conditions, the post-audit remediation and the principal legal failures. This adds a documented response to the comparison, alongside the earlier admissions.

Its endorsement

The paper serves as an objective, source-backed critique: it proves that while structured prompt framing can nudge a model toward relevant authorities, it does not eliminate hallucinations, quotation drift, or outdated statutory citations without an independent, inspectable, and deterministic verification layer.

The useful acknowledgment is that structured framing and verification address different parts of the task. But Gemini's word "proves" exceeds this record: the comparison does not establish a causal effect of framing or a uniquely necessary verification architecture. The quotation is preserved as Gemini's assessment, not adopted as a stronger research conclusion. [D]

That description is consistent with the intended scope. The example demonstrates an instance of BriefWise DI² prompting on Gemini; the paired answers and follow-ups make the evidence richer without turning it into a controlled benchmark. [D]

Preserve the response and its qualifications

D also strengthens some language beyond the paper. It calls A's exposure factors "mandatory statutory elements" and describes verification claims as "Empty." The narrower findings remain: A treated factors as requirements, and its broad verification assurance was not substantiated by a complete trace. Citation metadata with two URLs was present. The meaning A intended by "verified" remains unresolved.

D's exact model, settings, prompt and full conversation are unknown. Its agreement is a model-generated endorsement, not independent legal validation or a statement by Google. The response is included in the companion archive with marked redactions.

What the example establishes

A demonstrates an instance of BriefWise DI² prompting on Gemini. The Scheiding comparison supplies a favorable observation within that run; the remaining errors show what prompt compliance did not complete. Broader model-agnostic reliability requires repeated testing across engines.

What this record cannot establish

There is one retained answer per original condition, no randomized order, no repeated matched trials, and no blinded independent scoring. A used an API client; B is evidenced through a consumer Gemini capture. Their model versions, histories, tools and generation settings are not established as equivalent. The conditions were not matched. These confounds prevent a causal attribution of the observed differences. Proprietary material is outside the scope of this analysis.

Selection occurred after the outputs were seen. C followed criticism and tests a different situation. The review is targeted and AI-assisted, with no complete independent citator examination. These materials establish no error rate, statistical significance or reliability ranking.

Make verification inspectable

For a future test, define verification before generation. Require a source identifier, the supporting passage, a pinpoint, a holding-versus-dicta assessment, material limitations, and a dated treatment check for each material proposition. Require a specific supplied record item for each factual assertion. Distinguish source text actually checked from model recollection, inference and unresolved items. This is the paper's proposed standard, not a definition Gemini supplied.

A useful matched experiment

Hold model version, endpoint, tools, sources, output allowance and history constant. Vary only framing, randomize order and repeat across legal problems. Preserve failures as well as answers. Have a qualified reviewer score anonymized outputs for authority support, quotation accuracy, adverse authority, invented facts and uncertainty against a fixed rubric.

Sources and review scope

Court opinions were consulted as primary legal texts reproduced by Justia, rather than treating its summaries as authority. The statutory source is California Legislative Information. The references below support the selected comparisons, not a representation that every sentence of each draft has been verified. No comprehensive commercial citator search was performed.

[1] Scheiding v. Dinwiddie Construction Co. (1999) 69 Cal.App.4th 64, 79–83. Discovery showing and reversal on the record presented.

<https://law.justia.com/cases/california/court-of-appeal/4th/69/64.html>

[2] Scheiding v. General Motors Corp. (2000) 22 Cal.4th 471, 479–481. Locomotive preemption; not the cited discovery-burden decision.

<https://law.justia.com/cases/california/supreme-court/4th/22/471.html>

[3] Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416–1417. Exposure analysis and limits of frequency, regularity and proximity.

<https://law.justia.com/cases/california/court-of-appeal/4th/31/1409.html>

[4] Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 969, 978, 982–983. Causation framework, limitations and quotation comparison. Its footnote 13 reserves the asbestosis question; diagnosis is not supplied here.

<https://law.justia.com/cases/california/supreme-court/4th/16/953.html>

[5] Davis v. Honeywell International Inc. (2016) 245 Cal.App.4th 477, 480. Affirmed challenged expert testimony against a Sargon objection on its record.

<https://law.justia.com/cases/california/court-of-appeal/2016/b256793.html>

[6] Sargon Enterprises, Inc. v. University of Southern California (2012) 55 Cal.4th 747, 770–772. Expert gatekeeping and its limits.

<https://law.justia.com/cases/california/supreme-court/2012/s191550.html>

Sources and companion exhibits

[7] Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, 854–855. Moving defendant’s burden.

<https://law.justia.com/cases/california/supreme-court/4th/25/826.html>

[8] McGonnell v. Kaiser Gypsum Co. (2002) 98 Cal.App.4th 1098, 1103–1106. Speculative exposure inference on the particular record.

<https://law.justia.com/cases/california/court-of-appeal/4th/98/1098.html>

[9] Dumin v. Owens-Corning Fiberglas Corp. (1994) 28 Cal.App.4th 650, 656–657. Circumstantial exposure proof and evidentiary sufficiency.

<https://law.justia.com/cases/california/court-of-appeal/4th/28/650.html>

[10] Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872. Text checked for the attributed quotation; not a full treatment audit.

<https://law.justia.com/cases/california/court-of-appeal/2013/a134019.html>

[11] Code of Civil Procedure § 437c(a)(2). Published base notice requirement checked September 12, 2026.

https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=CCP§ionNum=437c.

The evidence archive is part of this paper

The archive provides redacted publication copies of A’s API request, answer and reported metadata; B’s control request, answer and combined capture; C’s post-audit admissions and revised draft; and D’s subsequent assessment. Proprietary material is outside the analysis. These exhibits are not complete original transcripts.

The archive also contains the redacted historical audit, this paper, a source index, extraction notes and SHA-256 manifest. This paper’s qualifications govern where the historical audit differs. Hashes establish publication-package consistency, not the truth of model statements or authentication of generation.

Quoted wording was checked against the source exhibits. Legal mistakes remain untouched; redactions are marked. The interface PDF is not redistributed. No credentials or unrelated local files are included. Prepared for review • September 13, 2026.